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CASE #	CASE NAME	HEARING NAME
CVRI2302786	TANAGHO VS REYNOLDS SPORTS MANAGEMENT	DEFENDANT TC SPORTS GROUP, LLC, MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: The Court **GRANTS** Defendant TC Sports Group, LLC's, unopposed Motion for Summary Judgment

Facts/Procedural Summary

Plaintiff Eman Tanagho is the surviving mother of decedent, Jamil Tanagho, who brings a wrongful death action under CCP §377.60. Big League Dreams Sports Park in Chino Hills is a large-scale sports park that hosts youth baseball. There are nine (9) separate locations of Big League Dreams Sports Parks. (Complaint ¶¶7-8.) In January 2021, Reynolds Sports Management purchased the rights to operate all nine locations. (¶10.) The City of Chino Hills is the owner of the Chino Hills Big League Dreams location. The City leased the premises to Big League Dreams Chino Hills, LLC and Reynolds Management who operated the sports field. (¶11.)

On May 27, 2022, Jamil Tanagho, who was 31 years old, was playing in an organized adult softball game at the Big League Dreams Chino Hills location. (¶12.) During the game, Jamil was running to the dugout and suddenly collapsed and fell to the ground due to a sudden cardiac arrest (SCA). (¶12.) The Complaint alleges that neither the City nor Big League Dreams had an Emergency Medical Technician (EMT) available to use an Automated External Defibrillator (AED) on Jamil, which Plaintiff contends would have greatly increased his likelihood of survival. (¶12.) The paramedics were called, and Jamil was transported to the Chino Valley Medical Center where he was pronounced dead at approximately 7:45 pm (about 45 minutes after the initial collapse). (¶13.)

The only cause of action alleged is wrongful death based on negligence. The instant motion for summary judgment is brought by Defendant TC Sports Group, LLC. It is unopposed.

EVIDENCE SUPPORTING MOTION (CCP §437c(b)(1)):

Attorney Byassee provides a copy of the Complaint (Exhibit A), a copy of Defendant's Answer (Exhibit B), a copy of Defendant City of Chino Hills' Request for Production of Documents propounded to Plaintiff Eman Tanagho (Exhibit C), and a copy of Plaintiff's verified response to the discovery (Exhibit D).

Declaration of Christopher Simonson, General Manager of Big League Dreams

Simonson explains Jamil Homsy signed and submitted a Waiver & Release before participating in any activities at the Sports Park. (¶7.) Simonson authenticates a copy of the signed Waiver & Release, attached as Exhibit A. Simonson further explains on the date of the incident there was no requirement for the maintenance of Automated External Defibrillators (AEDs) or medical personnel at the Sports Park. (¶8.) Simonson

explains Big League's protocol in the event of an emergency at the Sports Park is to call 9-1-1. (¶9.)

Declaration of Benjamin Montgomery, City Manager of City of Chino Hills

Montgomery explains on June 22, 1999, the City entered into a lease agreement with Big League Dreams Chino Hills, LLC where the City, as landlord and owner, agreed to develop a multi-purpose recreational sports facility and Big League, as tenant, agreed to maintain and operate the Sports Park. (¶3.) On May 27, 2022, the City was the owner of the Sports Park. (¶4.) On the same date, Big League was leasing the Sports Park from the City. (¶5.) On the same day, the City did not have any policies requiring the maintenance of Automated External Defibrillators (AEDs) or medical personnel at the Sports Park. (¶6.)

Declaration of Billy LeTellier, Dir. of Executive Affairs of Big League Dreams USA, LLC

LeTellier explains on the date of the incident TC Sports Group, LLC was the parent and an affiliated entity of Big League Dreams USA, LLC and Big League Dreams Chino Hills, LLC.

Exhibit A to Simonson Declaration – Waiver & Release signed by Decedent

The document states, in relevant part:

ACKNOWLEDGEMENT AND ASSUMPTION OF RISK

I acknowledge that entering and using the Big League Dream Sports Park...carry risks...serious injuries also may occur during games or other activities I...may participate in or observe while on the premises, including injuries which may result from the action or inaction or negligence of the released parties (defined below)...I knowingly and voluntarily assume these and all other risks...

RELEASE AND WAIVER

In consideration for the right to use the park, I and on behalf of, as applicable,...my heirs, executors and assigns, intend to and hereby do (a) release Big League Dreams Chino Hills, LLC...and their parent and affiliate entities and the officers, members, managers, owners, directors, contractors, employees, umpires...and agents of each of the foregoing entities and the City of Chino Hills and its elected officials, officers and employees (collectively the "released parties") from or with respect to any and all premises or other liability from any cause whatsoever (including, without limitation, negligence in rendering, or not rendering, medical or emergency aid) and for any and all loss of life, bodily injury...and/or other loss I...may suffer or incur in, about or en route to or from the park premises, whether or not any such loss is cause in whole or in part by the action, inaction or negligence of any released party...; and (b) waive any and all right I or they may have to make a claim against or to sue any released party for any such loss of life, injury, damage or other loss.

ANALYSIS

The wrongful death cause of action gives the representatives of a decedent as totally new right of action to compensate the heirs for the loss of companionship or other losses suffered as a result of the decedent's death. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal. App. 4th 1256, 1263.) The elements of a wrongful death cause of action are: (1) wrongful act or neglect on the part of one or more persons that (2) causes (3) the death of another person. (*Norbart v. Upjohn Co.* (1999) 21 Cal. 4th 383, 390.) To establish proximate cause in a wrongful death case, the wrongful act must be a substantial factor in bringing about the death. (*Bromme v. Pavitt* (1992) 5 Cal. App. 4th 1487, 1497.) "The actor's negligent conduct is not a substantial factor in bringing about harm to another if the harm would have been sustained even if the actor had not been negligent." (*Id* at 1498.)

Defendant first argues that the Waiver and Release signed by Decedent is valid and bars Plaintiff's claims. A release may negate the duty element of a negligence action. (*Benedek v. PLC Santa Monica* (2004) 104 Cal. App. 4th 1351, 1356) An exculpatory contract releasing a party from liability for future negligence is valid unless it is prohibited by statute or impairs public interests. (*Grebing v. 24 Hour Fitness* (2015) 234 Cal. App. 4th 631, 637.) "Exculpatory agreements in the recreational sports context do not implicate the public interest and therefore are not void as against public policy." (*Benedek, supra*, 104 Cal. App. 4th at 1356-1357.) This includes a release of all premises liability. (*Id* at 1359.) The scope of the release is determined the express language of the contract and may apply to all acts of negligence on the part of the defendant, including risks for which plaintiff had no prior knowledge. (*Id* at 1357.) "With respect to the question of express waiver, the legal issue is not whether the particular risk of injury appellant suffered is inherent in the recreational activity to which the Release applies." (*Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1484.) To be a valid release, the waiver must be "clear, unambiguous, and explicit in expressing the intent of the subscribing parties." (*Id* at 1485.)

Express assumption of the risk involves an agreement by the plaintiff to assume the risks of a particular activity and to relieve the defendant from liability. (*Ferrell v. Southern Nev. Off-Road Enthusiasts, Ltd.* (1983) 147 Cal.App.3d 309, 318.) So long as the express agreement to assume the risk does not violate public policy, it will be upheld and will constitute a complete bar to a negligence cause of action. (*Madison v. Superior Court* (1988) 203 Cal.App.3d 589.) "When parties intend for an express assumption of risk provision to exceed the inherent risk of the endeavor for which the release is signed, it is especially important for parties to clearly, explicitly and comprehensibly state the inclusion of noninherent risks." (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal. App. 4th 12811289.)

The Release states, in pertinent part, that decedent "release[s] Big League Dreams Chino Hills, LLC...and their parent and affiliate entities and the officers, members, managers, owners, directors, contractors, employees, umpires...and agents of each of the foregoing entities and the City of Chino Hills and its elected officials, officers and employees (collectively the "released parties") from or with respect to any and all premises or other liability from any cause whatsoever (including, without

limitation, ***negligence in rendering, or not rendering, medical or emergency aid***) and for any and all loss of life, bodily injury..." (emphasis added.)

Plaintiff's claims are based on the allegation that Defendants "breached their respective duty of care owed to [decedent] by failing to have an EMT and an AED available for use on [decedent]" (Comp. ¶20). Plaintiff alleges decedent died as a result of Defendants' negligence while playing an adult softball game at Big League Dreams Chino Hills. (Comp. ¶12.) Thus, Plaintiff's claims are based on an act of negligence by Defendants related to use of the Big League Dreams facilities, which is directly covered by the Release. Defendants have met their initial burden to show that the Release bars Plaintiff's claim.

As the motion is unopposed, Plaintiff has not provided any evidence of triable issues of material fact.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402696	SALAZAR VS COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: The Court continues this matter to Friday, July 17, 2026 at 1:30 p.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502763	SABREE VS CREEK HOMES, LLC	DEFENDANT CREEK HOMES, LLC DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: The Court GRANTS Creek's requests for judicial notice of Exhibits 1 through 3. The Court OVERRULES the demurrers in full. Defendants shall file an Answer in 30 days.

Factual / Procedural Context

This is a habitability dispute between tenant and landlord. In December 2021, Plaintiff Aaliyah Sabree ("Plaintiff") became a tenant of a home located at 11026 Evergreen Loop, Corona, CA ("Property"), which is legally owned by Defendant Creek Homes, LLC ("Creek") and managed by Defendant Sudman Enterprises, Inc. dba Management One ("Management One").

Plaintiff alleges that the Property suffered ongoing water intrusion from roof leaks, plumbing leaks, HVAC leaks, and exterior sources that allowed water to migrate into the home. The Property experienced improper ventilation, strong musty and offensive odors, and dampness in habitable rooms. The water intrusion resulted in loss of use of the home and severe microbial contamination, including amplification of bacteria, mold growth, and dust mites, rendering the property uninhabitable and causing Plaintiff to suffer allergic, irritant, and infectious conditions, including asthma, allergic rhinitis, and chronic sinusitis. As a result, Plaintiff alleges she was forced to move out of the Property in July 2023.